

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3695

By: Gise

AS INTRODUCED

An Act relating to motor vehicles; amending 47 O.S. 2021, Section 11-904, as amended by Section 65, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-904), which relates to personal injury accidents; modifying scope of certain defined term; defining term; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 11-904, as amended by Section 65, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-904), is amended to read as follows:

Section 11-904. A. Any person who is involved in a personal injury accident while driving or operating a motor vehicle within this state and who is in violation of the provisions of subsection A of Section 11-902 of this title may be charged with a violation of the provisions of this subsection as follows:

1. Any person who is convicted of a violation of the provisions of this subsection shall be deemed guilty of a misdemeanor for the first offense and shall be punished by imprisonment in the county

1 jail for not less than ninety (90) days nor more than one (1) year,
2 and a fine of not more than Two Thousand Five Hundred Dollars
3 (\$2,500.00); and

4 2. Any person who is convicted of a violation of the provisions
5 of this subsection after having been previously convicted of a
6 violation of this subsection or of Section 11-902 of this title
7 shall be deemed guilty of a Class B5 felony offense and shall be
8 punished by imprisonment in the custody of the Department of
9 Corrections for not less than one (1) year and not more than five
10 (5) years, and a fine of not more than Five Thousand Dollars
11 (\$5,000.00).

12 B. ~~1.~~ Any person who causes an accident resulting in great
13 bodily injury or chronic injury to any person other than himself or
14 herself while driving or operating a motor vehicle within this state
15 and who is in violation of the provisions of subsection A of Section
16 11-902 of this title may be charged with a violation of the
17 provisions of this subsection. Any person who is convicted of a
18 violation of the provisions of this subsection shall be deemed
19 guilty of a Class B1 felony offense punishable by imprisonment in
20 the custody of the Department of Corrections for not less than four
21 (4) years and not more than twenty (20) years, and a fine of not
22 more than Five Thousand Dollars (\$5,000.00).

23 ~~2. C.~~ As used in this subsection, ~~"great bodily injury"~~
24 section:

1 1. "Great bodily injury" means ~~bodily injury which creates a~~
2 bone fracture, protracted and obvious disfigurement, protracted loss
3 or impairment of the function of a body part, organ or mental
4 faculty, or substantial risk of death ~~or which causes serious,~~
5 ~~permanent disfigurement or protracted loss or impairment of the~~
6 ~~function of any bodily member or organ; and~~

7 2. "Chronic injury" means chronic or physical pain or medical
8 conditions that substantially interfere with the normal activities
9 or quality of life of the person.

10 SECTION 2. This act shall become effective November 1, 2026.

12 60-2-14225 GRS 01/13/26